

Notice of Availability (NOA)
Seeking Interest in the Use of
Lease Property at
NASA Marshall Space Flight Center

Description

The purpose of this Notice of Availability (NOA) is to publicize to industry, federal, and other non-federal public or private entities commercial aerospace-related development opportunities at the National Aeronautics and Space Administration (NASA), Marshall Space Flight Center (MSFC), which is located at the Redstone Arsenal. This notice is issued by NASA's Marshall Space Center in Huntsville, Alabama, which has responsibility for the management of these facilities.

NASA is seeking tenants interested in entering into an Enhanced Use Lease (EUL) with NASA to develop some or all of the identified NASA real property assets in a manner that optimizes and reinforces commercial aerospace capabilities at MSFC. NASA may engage in discussions with any respondent based upon the information submitted in response to this NOA. In accordance with the MSFC Master Plan, the uses that NASA will consider under this NOA are described in this document.

Available Property

The Properties as described below are located within the boundaries of MSFC that is surrounded by the U.S. Army Redstone Arsenal. The properties can be leased in whole or in part.

Land

Four parcels of land are available for lease.

Parcels L1 and L2 are approximately 65 and 30 acres respectively and are most suitable for Class A and Class B administrative space. Both parcels are relatively flat and currently utilized for agricultural purposes. Parcel L1 is partially covered by mixed deciduous forest. No known environmental contamination exists on either parcel. Parcel L1 is known to contain karst landscapes and geological features.

Parcel L5 is approximately 20 acres and most suitable for integration and manufacturing space. The parcel is relatively flat and currently covered by mixed forest. No known environmental contamination exists on the parcel.

Parcel L6 is approximately 5 acres and most suitable for integration and Class B administrative space. The parcel is relatively flat and partially covered by mixed deciduous forest. No known environmental contamination exists on either parcel.

Due to potential presence of threatened and endangered bat species, tree clearing is subject to USFWS approval, which may require surveys and seasonal restrictions. The tenant is expected

to work with the NASA natural resource manager and to fund any required surveys and timber clearing.

Supporting Infrastructure

Utilities are available to support all parcels include electricity, potable water, industrial water, sanitary sewer, natural gas, high pressure gases and communication duct banks. The tenant has the responsibility to extend utility services from the MSFC designated connection point to the point-of-use. Utility connection points will be determined based on the tenant's utility demands and the existing utilities' capacities.

Primary roads are accessible from the perimeter of all parcels. Secondary roads are also accessible from the perimeter of Parcel L5. The tenant has the responsibility to extend roadways to the lease site(s).

Center support services not otherwise available from the private sector, including utilities, fire protection and security/law enforcement will be provided by MSFC and the U.S. Army Garrison - Redstone with reimbursement by the tenant under a separate services agreement.

Real Property Agreements

NASA anticipates granting a tenant an Enhanced Use Lease conveying interest in, access to, or use of real property for a specified term.

Aerospace-related commercial use of MSFC real property supports NASA's mandate to "seek and encourage, to the maximum extent possible, the fullest commercial use of space," as stated in 51 U.S.C. § 20112(a)(4) and advances the National Space Policy that "United States Government space technology and infrastructure are made available for commercial use on a reimbursable, noninterference, and equitable basis to the maximum practical extent." NASA invites all categories of U.S. domestic entities, including commercial, federal, and state organizations, and United States Commercial Providers as defined in the Space Commerce Act, 51 U.S.C. § 50101(7), to submit responses to this NOA.

It is NASA's intent to ensure fairness to all parties and to ensure the best value to the Government in granting use of NASA real property.

NOA Objectives

NASA's objectives are:

1. Identify specific industry, federal, and non-federal public entities interested in leasing NASA real property at MSFC, as described in the purpose of this NOA;
2. Increase commercial access to space;
3. Enhance U.S. commercial competitiveness in the space launch industry;
4. Diversify the user base and operations at MSFC; and
5. Promote partnerships that will build, expand, modernize, or operate aerospace-related capabilities at MSFC.

NASA will only engage in discussions or enter into an agreement if it determines that doing so is in the Government's best interest. NASA is not precluded from entering into agreements with other federal entities for uses identified in this NOA, nor from using any facility at MSFC for NASA purposes, regardless of expressions of interest and proposed uses that NASA may receive from industry, federal, or non-federal public entities pursuant to this NOA.

Neither this NOA nor any response to it places NASA under any obligation to proceed with any particular action.

Uses That NASA Will Not Consider

NASA will not consider:

- Proposed uses other than those identified above as most suitable for each Property;
- Proposed uses that NASA deems incompatible with the current MSFC Master Plan, NASA or MSFC facility use policies, or existing environmental conditions;
- Proposed uses that could negatively impact any NASA mission;
- Proposed non-aerospace uses of MSFC real property or proposed uses that do not otherwise contribute to a NASA objective;
- Proposed transfer of title;
- Proposed residential uses; or
- Proposed uses that NASA in its sole discretion determines not to be in the best interest of the Government.

Environmental Compliance

Respondents must ensure that proposed uses align with NASA's practice of emphasizing environmental stewardship of the natural environment, ensuring appropriate mitigation measures are implemented to offset development impacts, and protecting wildlife habitat to the highest extent possible. Tenant's uses of the property may require additional NEPA analysis addressing the specific uses and its potential impacts. Additional NEPA documentation, as determined by NASA, is the responsibility of the tenant. The tenant will be required to coordinate with NASA to ensure compliance with environmental laws and regulations (e.g., Clean Air Act, Clean Water Act, Resource Conservation and Recovery Act, National Historic Preservation Act, Endangered Species Act, etc.)

Tenant's Responsibility for Costs of Facility Use Development

NASA will not be responsible for the costs of a tenant's facility use development. Such costs will be the sole responsibility of the tenant; they may include, but are not limited to:

- Site preparations to accommodate the use of the parcels;
- Design and construction costs for improvements;
- Costs associated with environmental compliance (e.g., regulatory permitting, NEPA compliance);

- Any costs associated the with design and construction of needed improvements to infrastructure components/systems (e.g., roads, water, utilities, sewer, wastewater, etc.);
- All operations and maintenance costs associated with the leasehold; and
- Lease costs.

Instructions for Responses

Interested parties shall submit responses by e-mail to the points of contact (POCs) listed below. The response shall clearly identify the facility use needs and planned use of the real property requested.

Responses shall include the following information:

- 1) Organization name, address, primary POC and telephone number, business size and type, and product or service line (Provide North American Industry Classification System (NAICS) code if available);
- 2) Approximate month and year when the real property (facility) is needed, a schedule that includes projected development activities, initial operational capability and estimated duration for the proposed use;
- 3) Evidence of proposer's financial capability (e.g. a general company business case or similar form of financial background summary) to accomplish the proposed development and subsequent operational use; and
- 4) Any additional information that would be relevant to achieving one or more of the objectives enumerated above.

This NOA is not a commitment by the Government to enter into any contract or agreement, or negotiation of any contract or agreement. NASA will not pay for any information provided nor any administrative costs incurred in response to this NOA. NASA will not provide information concerning or developed during its deliberative process.

This NOA will remain open, and interested parties may respond, for up to 30 days from the date of this NOA's posting. Please reference this NOA in any response. Based on the responses to this NOA it is NASA's intent to issue an Announcement for Proposal (AFP). NASA reserves the right to not out-grant all of the parcels nor the entire acreage of any one parcel at this time. NASA further reserves the right to enter into one, more, or no agreements for development where appropriate, based on proposals received from the subsequent AFP.

Respondents are encouraged to limit the amount of Proprietary Data (defined below) included in their responses, and only include such information that is necessary to meet the requirements listed. Respondents must clearly mark any Proprietary Data in their response. For purposes of this notice, "Proprietary Data" shall mean information set out in the response embodying trade secrets developed at private expense or commercial or financial information that is privileged or confidential, and that includes a clear restrictive notice, unless the

information is (i) known or available from other sources without restriction, (ii) known, possessed, or developed independently, and without reference to such marked information in the response, (iii) made available by the owners to others without restriction, or (iv) required by law or court order to be disclosed. With respect to such Proprietary Data, NASA shall:

- a. Use, disclose, or reproduce such Proprietary Data only as necessary to evaluate the response;
- b. Safeguard such Proprietary Data from unauthorized use and disclosure;
- c. Allow access to such Proprietary Data only to its employees requiring access for purposes of evaluating the response;
- d. Except as otherwise indicated in c., preclude disclosure outside NASA;
- e. Notify its employees with access about their obligations under this notice and ensure their compliance; and
- f. Dispose of such Proprietary Data after evaluation of the response has concluded. All submissions become Government property and will not be returned.

Questions regarding this NOA shall be submitted in writing via email to the POCs listed below. Verbal questions will not be entertained.

All submissions become Government property and will not be returned.

Questions or Requests for Site Visits

For additional information about MSFC, questions about this NOA, or to arrange a site visit, please submit in writing via email to HQ-RealEstate@mail.nasa.gov.

NASA POINTS OF CONTACT

Primary:

Cari Smith
(771) 444-1016
HQ-RealEstate@mail.nasa.gov
MSFC Real Property Accountable Officer
NASA Headquarters,
Facility and Real Estate Division

Alternate:

William Driebergen
(228) 305-0007
HQ-RealEstate@mail.nasa.gov
NASA Headquarters,
Facility and Real Estate Division

**APPENDIX I,
VICINITY MAP**

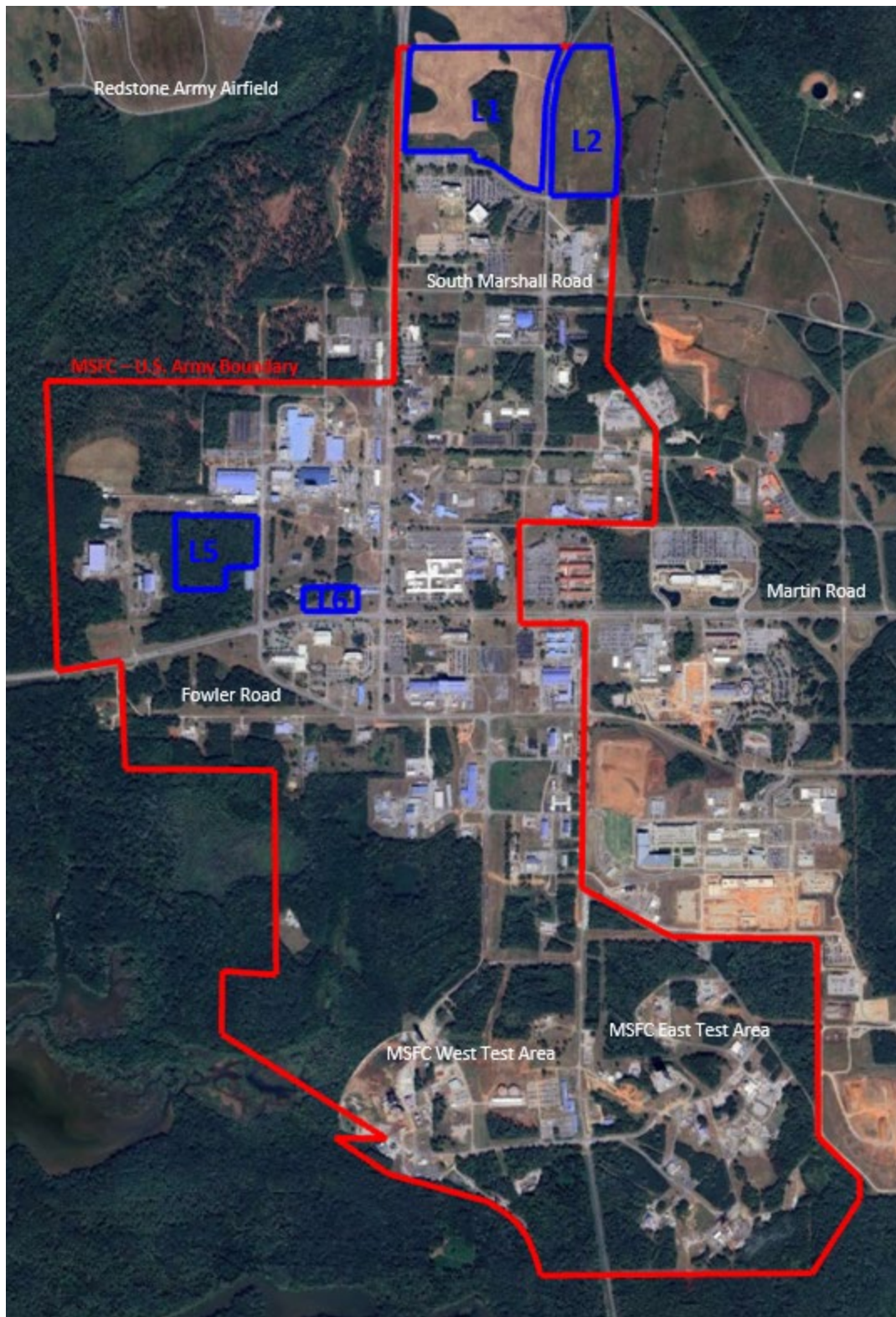


Fig. 1, Vicinity Map

**APPENDIX II,
SITE PLAN**



Fig. 2, Parcels L1 & L2 Site Plans

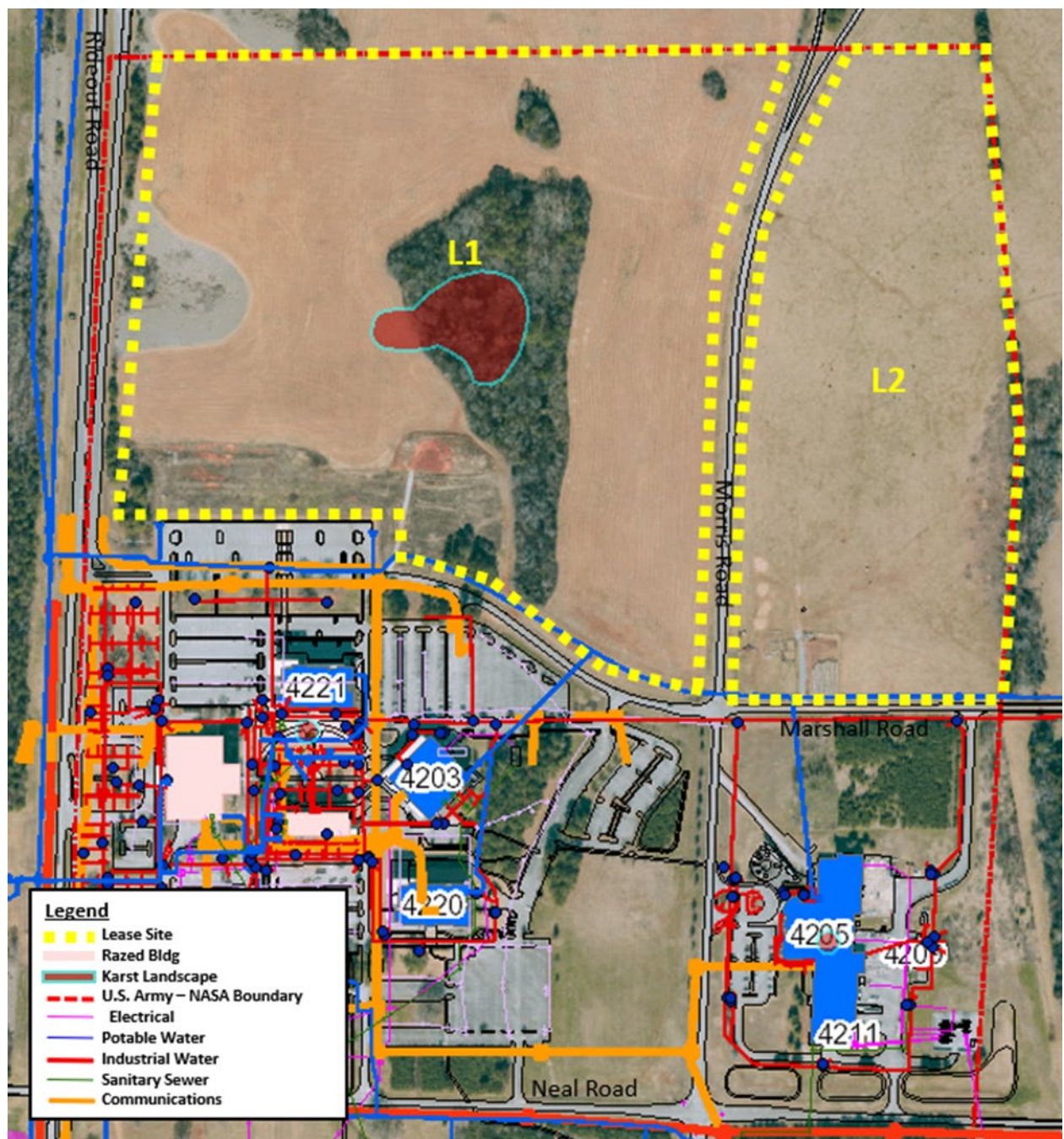


Fig. 3, Parcels L1 & L2 Site Plans with Constraints

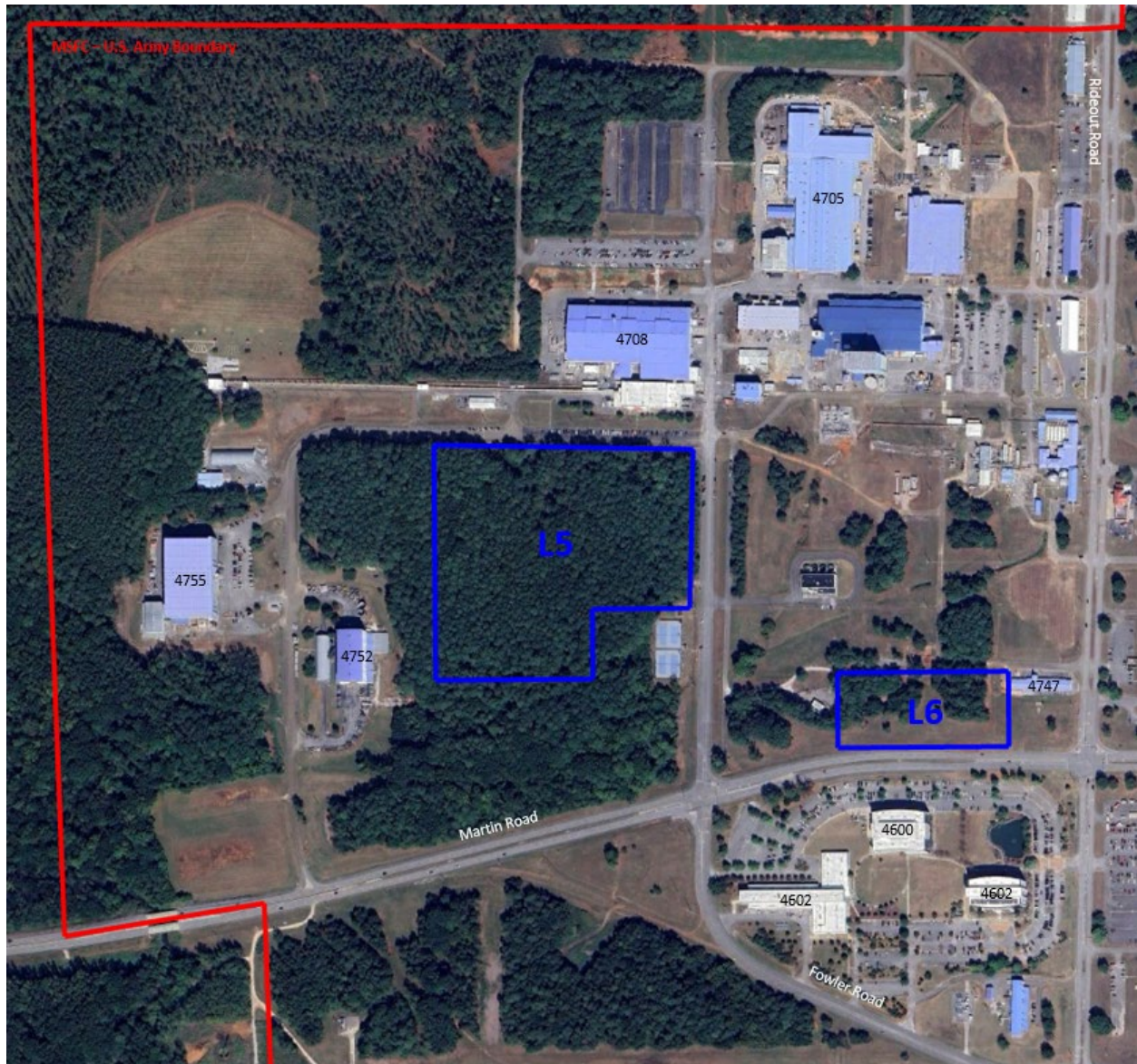


Fig. 4, Parcels L5 & L6 Site Plans

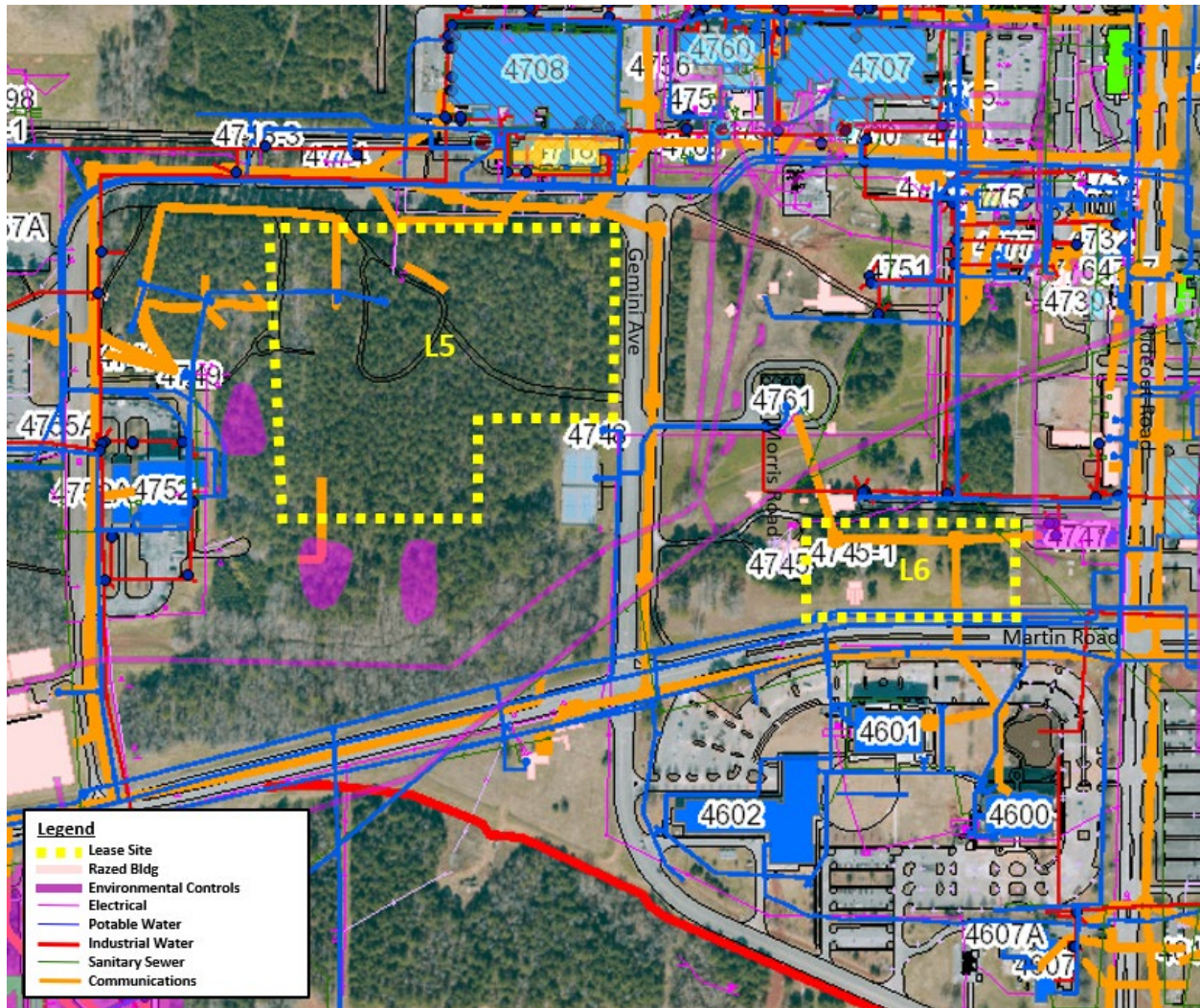


Fig. 5, Parcels L5 & L6 Site Plans with Constraints